



M&C_SHENZHEN XINYUAN

SALES CONTRACT

No: M&C-SHENZHEN /20260119

Date:19 Jan2026

Buyer: M&C ELECTRONICS VINA Co., Ltd.

Address: Lot J1, Que Vo IP (extended area), Phuong Lieu Ward, Bac Ninh Province, Vietnam.

Tel: +84-222-395-2000

Fax: +84-222-395-2001

Representative by: Mr. Choi Byoung Youn

Title: Deputy General Manager

Hereinafter referred to as "The Party A"

Seller: Shenzhen Xingyuan Intelligent Equipment Co., LTD

Address: Room 702, Building 1, No.59, Ho Ye Road, Zhancheng Community, Fuhai Street, Bao 'an District, Shenzhen, China

Tel: +86-13760433599

Email: hongxinyuan@xinyuancnc.com

Representative by: Mr Xin Yuan Hong

Title: Legal representative

Hereinafter referred to as "The Party B"

After discussing and negotiating, Two Parties agree to sign this contract with the terms and conditions as followings:

Article 1: Commodity, Quantity and Price

Two parties agree that Party A will buy "goods" details as below:

IT	Name and Specifications	Q'ty	Unit	Unit price (usd)	Total Value (usd)
	Mobile phone middle frame screening machine include:				
1	Screening machine. Model XY-V3-P2000-D	1	Set	14,720.00	14,720.00
2	Automatic feeder. Model: XY-XL	1	Set	7,360.00	7,360.00
TOTAL AMOUNT (DAP)					22,080.00

Name of Manufacturer: Shenzhen Xingyuan Intelligent Equipment Co., LTD

#Note: This price above

- This total amount includes labor fee of engineers for installation provide by party B. Party B will proactively arrange themselves accommodations, travel return ticket, and visa fee.



Article 2: Packing, Delivery terms

- Goods will be packed in export standard packing (Transport by container).
- Party B will ship the goods before 10th March 2026. Time for installation and commissioning within 7 days.
- Goods are delivered as **DAP terms (as Incoterms 2010)**.
- Port of Loading: **SHENZHEN, CHINA.**
- Port of Destination: **QUANG NINH, VIET NAM.**

Article 3: Payment terms

- Currency is **USD.**
- Payment terms:
 - The first times (advance payment): Party A will make payment 50% in advance by TT the value of this contract, which is **11,040.00 USD**, within 7 days from the date of signing this contract.
 - The second times (advance payment): Party A will make payment 40% in advance by TT the value of this contract, which is **8,832.00 USD** on before shipment.
 - The final times: Party A will make payment 10% by TT the value of this contract, which is **2,208.00 USD**, within seven (07) days of the machinery being delivered to Party A.
- Beneficiary bank information:
 - Account name: Shenzhen Xingyuan Intelligent Equipment Co., Ltd.
 - Bank Name: AGRICULTURAL BANK OF CHINA SHENZHEN ZHONGXINQU SUB-BRANCH
 - Branch Name: AGRICULTURAL BANK OF CHINA SHENZHEN ZHONGXINQU SUB-BRANCH
 - Bank Address: 1F ZHUOYUE BLDG, No.98 FUHUA 1ROAD SHENZHEN CHINA
 - Swift code: ABOCCNBJ410
 - Account No.: 4100 4700 0400 58548

Article 4: The right and obligation of Party.

4.1 The right and obligation of Party A.

- Party A shall be responsible for power supply: Party A shall provide the main power supply to the pile head of the electric box of Party B.
- Party A must check goods after receiving them from Party B, verifying that the goods received match the shipping documents, including bill of lading, packing list, and invoice. And assessing any visible damage or defects that may have occurred during transportation. If any goods are found to be defective or non-conforming to the specifications stated in the contract, Party A has the right to:



- + *Reject the goods and request a full refund of the payment made for the rejected goods.*
- + *Request Party B to repair or replace the defective goods at Party B's expense, including any transportation costs incurred.*
- + *Negotiate a price reduction if Party A chooses to accept the defective goods (However, Acceptance of the goods does not waive Party A's rights to file claims for hidden defects or latent issues that were not discoverable upon initial inspection but become apparent within the warranty period).*
- *Party A have the right to unilaterally terminate the contract and request compensation for damages if Party B seriously violates shipping schedule or lasting installation time after receipt all party A's payment without any official announcement. Party A has the right to request Party B to refund the amount paid by Party A and request Party B to compensate for expenses of Party A incurred up to the time termination of the contract and fined to a penalty of 20% of the total value of this contract.*
- *Party A have all intellectual property rights, including but not limited to patents, copyrights, technical drawings, designs, software, technical documentation, and any other proprietary information created, developed, or delivered by Party B (the seller or contractor) during the performance of this contract shall remain the exclusive property of Party A, unless otherwise specified in this contract. Party A may use the intellectual property only for the purposes specified in this contract and is prohibited from sublicensing or transferring the intellectual property to any third party without the prior written consent of Party B. Any software provided by Party B in connection with the equipment or services under this contract shall be licensed to Party A under the terms specified in this contract. Party A shall have the right to use the software only for the purposes outlined in this agreement and is prohibited from reverse-engineering, decompiling, or modifying the software without Party B's consent. If Party A provides technical drawings, designs, formulas, or other detailed specifications to Party B and requires Party B to produce goods or provide services in accordance with such information, Party A shall bear full responsibility for any intellectual property infringement claims arising from Party B's compliance with Party A's instructions. Both parties agree to keep confidential all proprietary information, trade secrets, and intellectual property exchanged between them during the execution of this contract. Neither party shall disclose such information to any third party without the prior written consent of the other party, except as required by law.*
- *Payment in time for the Party B as mentioned above in Article 3 of this contract.*

4.2- The right and obligation of Party B:

- *To delivery to Party A correct quantity, quality, on time and place agreed as the contract. Party B (the contractor or seller) commits to completing all contractual obligations, including delivery, installation, and commissioning, within the timeline specified in the contract. Any changes to the agreed timeline must be mutually agreed upon in writing by both Party A (the buyer) and Party B. If Party B anticipates any delay in meeting the deadlines, it must notify Party A in writing immediately, providing the reasons for the delay and the expected new*



completion date. Party A reserves the right to accept or reject the proposed extension depending on the circumstances surrounding the delay.

- Keeping secret and no transfer about product of Party A or all information disclosed in writing or electronic media which is conspicuously informed as "Confidential" or Information which is disclosed in any other manners (e.g. orally or by demonstration) and expressly identified as confidential at the time of disclosure, and which is further reproduced in written form conspicuously marked, informed as "Confidential". Party B commit to use the Confidential Information received from the other party only for the purposes of the evaluation, design. And only without prior written consent of the disclosing party, not to disclose any received Confidential Information to any other except its officers and/or employees who need access thereto in the performance of the evaluation, design. In case, if have any received Confidential Information is lost or seemingly lost, to immediately notify the disclosing party also take all responsibility for the related legal and financial consequences due to failure to ensure commitment to confidentiality. Strictly comply with the confidentiality agreement signed by both parties (before).
- Party B will pay for personnel are required to install and commission the equipment in Vietnam, all expenses incurred by the personnel, including visa, roundtrip expenses, local transportation expenses, room and board expenses, shall be borne by Party B (Party B will offer Installation personnel going abroad: two personnel). The install and training will be conducted as soon as the machinery arrives at Party A's workshop area and will be presented and confirmed through a detailed training document. The installation shall be completed within 7 days, but if the construction period is delayed due to the reasons of Party A, all expenses shall be borne by Party A. Opposite, if the construction period is delayed due to the reasons of Party B, all expenses shall be borne by Party B (includes all expenses incurred by the personnel, including visa, roundtrip expenses, local transportation expenses, room and board expenses).
- Upon full payment of all amounts due under this contract, Party B agrees to transfer to Party A all rights, title, and interest in the intellectual property specifically developed for the project, including any related documentation, designs, and source code (if applicable). This transfer shall include both hardware and software components, as well as any modifications or improvements made to the intellectual property during the contract. The transfer of goods, intellectual property is legal. Party B warrants that all goods, services, and deliverables provided under this contract do not infringe upon any third-party intellectual property rights, including but not limited to patents, copyrights, and trademarks. The seller shall not sell goods that infringe on intellectual property rights (and shall provide any necessary updates, maintenance, and support for the software). The seller shall be responsible for any disputes related to intellectual property rights concerning the sold goods (Party B agrees to indemnify and hold harmless Party A from any and all claims, losses, damages, liabilities, and expenses (including attorney's fees) arising from any intellectual property infringement claims related to the goods or services provided under this contract). If the buyer requires the seller to adhere to technical drawings, designs, formulas, or detailed specifications provided by the buyer, then the buyer shall be responsible for any claims related to intellectual property infringements arising



from the seller's compliance with the buyer's requirements. In the event that Party B becomes aware of a potential intellectual property dispute or claim, Party B must notify Party A promptly and take appropriate measures to resolve the issue, including replacing or modifying the goods or services to avoid infringement.

- *Party B is obliged to ensure the physical safety of both Party B's experts or Party A's workers and technicians during the installation and commissioning period. In case of unnecessary workplace accidents caused by technical setup errors or machine failure due to Party B's reasons, Party B shall bear all compensation expenses for personal and property losses caused to Party A. If the workplace accident is caused by the intentional or gross negligence of Party A, Party A must bear all compensation costs for personal and property losses caused to Party B.*
- *Provide full documents for receiving which have stamp and sign original will be submitted and sent scan file version via email to party A such as:*
 - ✓ *Sales contract: 02 Originals*
 - ✓ *Commercial Invoice: 02 Originals*
 - ✓ *Packing list: 02 Originals*
 - ✓ *Warranty Statement (English version): 01 Originals*
 - ✓ *CO (Cert of Origin) issued by the chamber of commerce and industry in China in 01 originals and 02 copies.*
 - ✓ *CQ (Quality certificate) issued by maker: 02 Originals*
 - ✓ *Insurance Certificate: Full set*
 - ✓ *Full set surrender B/L (Bill of lading): 02 Copies*
- *If Party B delivers goods late, must compulsory inform Party A before one (01) month. In case Party B still delivery late more than 07 days later than delivery time confirm second times or without any notification, Party A has the right to terminate the contract unilaterally. In this case, Party B must reimburse Party A amount of the deposit received (payment of phase 1) is 11,040.00 USD (50% value of this contract) and is fined to a penalty of 10% of the total value of this contract (2,208.00 USD). After reaching this limit, Party A may terminate the contract and seek compensation for additional damages caused by the delay.*
 - + *In addition to the penalty, Party B shall compensate Party A for any direct or indirect losses, costs, or damages incurred as a result of the delay, including but not limited to:*
 - *Loss of business or revenue.*
 - *Additional costs related to storage, insurance, or logistics.*
 - *Expenses incurred due to idle labor or machinery.*
 - *Party A must provide supporting documentation to justify any claims for compensation beyond the standard delay penalty.*
 - + *Delays caused by events beyond Party B's reasonable control, such as natural disasters, acts of war, government regulations, or other force majeure events, shall be excused if Party B notifies Party A in writing within [specific timeframe] from the occurrence of such events.*



- + In the case of force majeure, the deadline for completion may be extended by a period equivalent to the duration of the force majeure event. Party B must provide evidence of the force majeure event and demonstrate that all reasonable measures were taken to minimize the delay.
- + Grace Period (Optional): Party A may grant Party B a grace period of [number of days] to complete the work without incurring penalties, provided that Party B shows reasonable efforts to meet the deadline and the delay is minimal. Party B shall take all reasonable measures to mitigate any delays and minimize the impact on the project schedule. This may include, but is not limited to, allocating additional resources, working overtime, or subcontracting part of the work (with Party A's approval).
- To request Party A to pay on time as Article 3 of this contract. If party A not complete payment duty as payment term Party B have the right to unilaterally terminate the contract and Party A shall bear all the losses caused.

Article 5: Insurance Clause

5.1 Scope of Insurance Coverage:

Party B (the seller) shall be responsible for purchasing insurance to cover all risks related to damage or loss of goods during transportation from the point of origin to the destination (or delivery point specified in the contract). The coverage must include but is not limited to:

- Loss or damage due to accidents (e.g., collision, overturning, derailment).
- Loss or damage caused by natural disasters (e.g., storms, floods, earthquakes).
- Fire or explosion during transit.
- Theft, robbery, or any unlawful act causing loss of goods (General or partial average).

5.2 Minimum Insurance Requirements:

- The insurance policy must cover at least 1.10% of the total contract value, ensuring that Party A (the buyer) is fully compensated in case of total or partial loss or damage of goods.
- Insurance must cover the entire journey from the point of shipment to the designated delivery point (whether it is port-to-port or warehouse-to-warehouse).
- The insurance coverage shall be consistent with internationally recognized insurance terms such as Institute Cargo Clauses (A) or an equivalent policy providing "All Risks" coverage.

5.3 Insurance Provider:

- The insurance shall be procured from a reputable and internationally recognized insurance company acceptable to both parties.
- The insurance policy shall be issued in the name of Party A, or Party A shall be the designated beneficiary, ensuring that all compensation for damage or loss is directly payable to Party A.

5.4 Claim Process:

In the event of damage or loss during transit, Party B must:



- Immediately notify Party A and the insurance provider within [specific time frame] of the incident.
- Submit all required documentation, such as the bill of lading, commercial invoice, packing list, and damage report to both the insurance company and Party A.
- Cooperate fully with the insurance company and Party A to facilitate the claims process.
- Party A has the right to inspect the goods upon arrival and may reject any goods found to be damaged. Party B must assist Party A in filing claims for compensation.

5.5 Responsibility for Insurance Premium:

- Party B shall bear the full cost of the insurance premium, including any additional fees related to the coverage, unless otherwise stated in the contract.
- Limitation of Party A's Responsibility: Once the goods are delivered in accordance with the agreed Incoterms, Party A shall not bear any risk or responsibility for damage or loss that occurs during transportation.
- Party B remains responsible for ensuring adequate insurance is in place until the goods are delivered to the agreed destination point and accepted by Party A.

Exclusions:

- + The insurance policy should clearly define any exclusions or risks not covered, such as:
- + Damage due to improper packaging or handling by Party B before transportation.
- + Loss or damage due to delays in transit (unless otherwise agreed in writing).
- + Acts of war, terrorism, or political instability.

5.6 Additional Coverage (if applicable):

Party A may request additional coverage for special risks (e.g., high-value or sensitive items) as required by the nature of the goods. In such cases, Party A shall bear any additional insurance costs incurred, provided both parties have agreed in writing.

Article 6: Liability for Accidents During Installation and Commissioning

6.1 Scope of Responsibility:

- Party B (the seller or contractor) shall be responsible for ensuring that all installation and commissioning activities are conducted in a safe and professional manner, adhering to all relevant safety regulations, laws, and industry standards.
- Party B is fully responsible for the safety of its personnel, subcontractors, and any third parties involved in the installation and commissioning of the equipment at Party A's site.

6.2 Accident Prevention Measures:

- Party B shall implement all necessary safety measures to prevent accidents, including but not limited to:
 - + Providing appropriate personal protective equipment (PPE) for all workers.



- + Ensuring proper training of personnel in the safe operation of machinery and tools.
- + Conducting regular safety inspections and risk assessments during installation.
- + Clearly marking hazardous areas and providing safety signage where necessary.
- Party A shall cooperate with Party B in providing access to necessary areas, utilities (e.g., electricity, water), and safety information relevant to Party A's site.

6.3 Responsibility for Accidents:

If any accidents, injuries, or damages occur during the installation or commissioning process, Party B shall be solely responsible for:

- Medical costs, compensation, or benefits to any injured personnel (whether they are Party B's employees or subcontractors) in accordance with applicable labor laws and insurance policies.
- Repairing or replacing any damaged equipment or property caused by the negligence of Party B's personnel during the installation.
- Party A shall not be liable for any accidents or injuries that occur due to the actions or negligence of Party B or its subcontractors.

6.4 Insurance Requirements:

Party B is required to maintain valid insurance policies covering:

- Workplace accidents: Including workers' compensation insurance for its employees.
- Third-party liability insurance: Covering damage to Party A's property, third parties, or other equipment during installation and commissioning.
- Party B must provide Party A with proof of insurance prior to the commencement of installation activities.
- In the event of an accident, Party B shall immediately notify Party A and the insurance provider, and take appropriate steps to manage the situation and file any necessary claims.

6.5 Force Majeure:

Party B shall not be held responsible for accidents or damages caused by force majeure events, such as natural disasters, war, or political instability, provided that Party B has taken all reasonable precautions to mitigate risks.

6.6 Indemnification:

Party B agrees to indemnify and hold Party A harmless against any claims, damages, losses, or expenses arising from accidents or injuries that occur during the installation and commissioning process, except in cases where such accidents are directly caused by Party A's negligence or failure to provide a safe working environment.

6.7 Safety Compliance:



Party B shall comply with all safety regulations and standards enforced by local authorities, as well as any additional safety rules implemented by Party A at the installation site.

If Party A identifies any safety violations or risks, it has the right to halt the installation process until the issues are rectified by Party B.

6.8 Reporting and Documentation:

In the event of an accident, Party B must immediately report the incident to Party A and prepare a detailed accident report, including:

- *The cause of the accident.*
- *The extent of damage or injury.*
- *The actions taken to resolve the issue.*

Party B must also provide copies of all accident reports to the relevant local authorities, if required by law.

6.9 Additional Considerations (Optional):

- *Training and Certification: Party B must ensure that all personnel involved in installation are properly trained and certified for the tasks they perform.*
- *Post-Installation Inspections: After installation, Party B must conduct a thorough inspection of the equipment and worksite to ensure everything is safe and operational before commissioning begins.*

Article 7: Warranty

The party B will provide warranty service for machinery/ equipment(s) which mentioned in article 1 of this contract within 12 months from the date of handover acceptance, installation, commissioning, exclude the parts are consumables. In case of an incident (caused by manufacturer - Party B) during the warranty period, Party B will replace the damaged part within the scope of supply of Party B for free. In case, the system of Party A is not in accordance with the process or does not comply with the process, Party B will not be responsible for this error and any costs will be paid by Party A. During the warranty period, Party B will replace the warranted components free of charge. For components no longer under warranty (The warranty does not cover wear and tear parts), if the customer requests Party B's technicians to perform maintenance and other services, Party B will charge for the time and travel expenses of the maintenance personnel, as well as all other costs, in accordance with Party B's company standards for spare part replacement costs.

Party B also provide technical support for the whole lifespan of the machine. After sale service includes:

- *Service phone line keep 24 hours unblocked.*
- *All emails will get response within 2 hours.*
- *Any needed machine parts can be supplied with professional guiding and ordinary price.*

Article 8: Force Majeure and resolving contract dispute.

8.1 Force majeure:



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- The contract performance is restricted or delayed because of any Force Majeure events beyond the control of the two parties such as natural disasters, fires, disasters ... the implementation time will be extension.
- The party affected by force majeure events must notify the other party of the contents of such cases in writing within 05 days from the date of the Force Majeure occurrence there. These cases must be investigated and certified by the competent authorities.

8.2 Dispute resolution

- Any disputes arising out of this Contract shall firstly be settled on the basis of negotiation, conciliation and assurance of legal interests between both Parties.
- In the event of failure to reach an agreement within thirty (30) days of the date on which the dispute arises, the matter shall be referred to the competent International Court of Arbitration. The place of arbitration shall be in Hanói, Viet Nam, and the arbitration proceedings shall be conducted in English.

Article 9: Effectiveness.

- This contract comes into effect from signing date.
- From the date of effectiveness, the parties must perform the rights and the obligations together in accordance with this contract.
- The contract can be changed or cancelled following the parties' agreement or regulations of the law.

Article 10: Contract termination, unilaterally terminate contract.

This Contract terminates when: Two parties complete all obligations according to this Contract; Two parties agree to terminate the Contract.

Article 11: Miscellaneous.

- This contract comes into effect from the signing date. In case, any party has demand to adjust or supplement any items, that party must notice for the rest party at least 3 days and together renegotiate to reach both agreement by signing annex.
- This contract is automatically liquidated after two Parties complete the obligations and terms as mentioned above.
- In case of any amendment to this Contract, The Parties concerned shall agree to and confirm in writing. This is made in English in two (02) copies of equal value, of which one (01) copies are for the seller and the rest are for the buyer & manufacturer and comes to effect from the signing date.

